



POLICE DEPARTMENT

October 9, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202202367 (Incident Date: April 12, 2022) regarding Police Officer Christopher Neun, Tax No. 968667 (DADS No. 2023-28816)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202202367, pertaining to Police Officer Christopher Neun. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Neun would be detrimental to the Police Department's disciplinary process, insofar as Police Officer Neun's misconduct in this matter does not warrant that level of discipline.

In this matter, Police Officer Neun was one of many officers who responded to the scene of a police officer's distress call. He noticed an ongoing situation between an individual and a fellow officer. The CCRB panel substantiated an allegation against Police Officer Neun for using physical force. While the Police Commissioner agrees with the findings in this matter, the Police Commissioner does not agree that Charges and Specifications are appropriate. Based on the various angles from the body worn cameras, it is clear that any injuries sustained by the individual in this case cannot be attributed to any one specific officer. Police Officer Neun's lack of disciplinary or CCRB history should be considered when determining the appropriate level of discipline in this matter.

Additionally, the Police Commissioner also noted the overall chaotic events that occurred at the location when the force took place. After careful consideration of the aforementioned facts and circumstances, the Police Commissioner believes that the penalty for this matter should be adjudicated with the presumptive Schedule "B" Command Discipline as allowed for under the

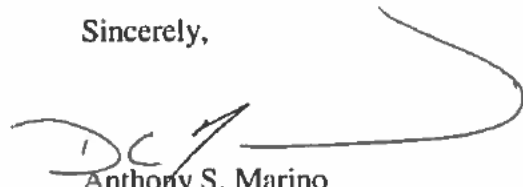
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Disciplinary System Penalty Guidelines.

Therefore, as provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends, in the interest of justice, to retain jurisdiction over this matter and issue Schedule "B" Command Discipline with the forfeiture of ten (10) vacation days for violating Patrol Guide Procedure 221-01 (Force Guidelines) and Patrol Guide Procedure 221-02 (Use of Force).

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
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October 12, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Police Officer Christopher Neun
Disciplinary Case No.: 2022-28816

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Andrew Marino, dated October 9, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications in these matters. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of the CCRB, you determined that the recommended penalty of Command Discipline Schedule B with a forfeiture of Ten (10) vacation days was appropriate but did not require the imposition of charges & specifications against Police Officer Christopher Neun.

If CCRB offered a plea deal for this case today it would be in line with the recommended penalty of Command Discipline Schedule B with a forfeiture of Ten (10) vacation days as determined. Further, if the CCRB were to resolve this case today, and the respondent was to accept responsibility for the misconduct, the CCRB would have moved to dismiss the charges itself.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board